Effective:
03/01/2025

Background:
The Federal Poverty Levels (FPLs) used to determine financial eligibility for Medi-Cal programs, are adjusted annually to reflect changes in the cost of living. The Statewide Average Private Pay Rate (APPR) for Nursing Facility Level of Care (NFLOC) services is used to calculate the Period of Ineligibility (POI) when an institutionalized customer transfers non-exempt property for less than fair market value.

Purpose:
To provide staff with the 2025 FPL and APPR values and procedures.

Policy:
Use the updated 2025 FPL values referenced in Medi-Cal Program Guide (MPG) 11.1A Assistance Standards when determining eligibility for the appropriate programs.

- For applicants and beneficiaries of the Medicare Savings Programs (MSP), Qualified Medicare Beneficiary (QMB), Specified Low-Income Medicare Beneficiary (SLMB), and Qualified Individual (QI-1) who do not receive Title II Retirement Survivors and Disability Insurance (RSDI) income, apply the new FPLs retroactively to January 1, 2025.
- For MSP customers with Title II RSDI income, apply the new FPLs effective March 1, 2025.
- For Aged, Blind, and Disabled (ABD) FPL program and the 250% Working Disabled Program (WDP), the new FPLs are effective April 1, 2025.
- For individuals with Medi-Cal eligibility based on Modified Adjusted Gross Income (MAGI) methodologies, apply the new FPLs retroactively to January 1, 2025.

Effective January 1, 2025, the APPR for NFLOC is $13,656. Do not review or request information for transfers made on or after January 1, 2024. Only transfers made during the look-back period are considered. The look-back period is the 30 months prior to January 2024. The review period decreases by one month for each month that passes after January 1, 2024.

Procedure:
Review all denials and discontinuances back to the specified date for each group to re-evaluate eligibility based on the updated 2025 FPLs. Upon request from the beneficiary, their parent or legal guardian, or their Authorized Representative (AR), retroactively adjust eligibility in the following circumstances:

- Advance Premium Tax Credit (APTC) eligible individuals who did not enroll in a Qualified Health Plan (QHP) or did not pay a premium.
- APTC eligible individuals who enrolled in a QHP and paid a premium but have Medi-Cal covered medical or dental expenses that were not covered by their QHP during the retroactive period.
- Individuals with a share of cost (SOC) who are redetermined eligible with a zero or a lower SOC when using the 2025 FPLs, who had out of pocket expenses for covered medical or dental services may be eligible for retroactive Medi-Cal out-of-pocket expense reimbursements (Conlan). Refer to MPG 04.02.10J Beneficiary Reimbursement Process (BRP) for more information.

Use the 2025 APPR when calculating any POI if the date of application or date of institutionalization (whichever is more recent) occurs in 2025 and a disqualifying transfer of property was made during the

look-back period in 2023 or earlier. Refer to Special Notice (SN) 23-06 Attachment A - Decreasing Look-Back Period.

Automation Impact:
The 2025 FPL tables were updated in the California Statewide Automated Welfare System (CalSAWS) on February 13, 2025. A Batch update occurred on March 1, 2025, to update the MSP values. The new FPL values will be effective April 1, 2025.

An Exception List will be sent to Family Resource Centers (FRCs) for action on cases that did not automatically authorize along with instructions on how to process these cases.

References:
ACWDL 25-01 and 25-02

Sunset Date:
This policy will be reviewed for continuance on or by 02/28/2026.

Approval for Release:

for:

Rick Wanne, Director
Self-Sufficiency Services